

Purpose

Reference sheet mapping each cacao product in the Agroverse portfolio to its **HS code** (6-digit WCO), **US HTS** (10-digit) and **Brazil NCM** (8-digit). Prepared for freight forwarders, customs brokers, GACC/CIFER registration and commercial invoicing.

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Source basis: WCO Chapter 18; US HTS Chapter 18; Brazil NCM; DAO export docs (`brazil/BRAZIL\_TO\_CHINA\_GACC\_REGISTRATION\_GUIDE.md`, `plans/AORA\_EXPERIENCE\_PLAN.md`).

Summary table

Product	HS (6-digit)	US HTS	Brazil NCM	Description of heading
Cacao beans (als. <i>cacao almonds</i>)	1801.00	1801.00.0010 (organic) / 1801.00.0090 (other)	1801.00.00	Cocoa beans, whole or broken, raw or roasted
Cacao nibs	1801.00	1801.00.0010 / 1801.00.0090	1801.00.00	Broken cocoa bean fragments — remains a "broken bean"
Ceremonial cacao (200g pouch, stone-ground paste)	1803.10	1803.10.0000	1803.10.00	Cocoa paste, not defatted (whole-bean liquor, cocoa butter retained)
Cacao tea (pure husk/shell)	1802.00	1802.00.0000	1802.00.00	Cocoa shells, husks, skins and other cocoa waste
(context) Cacao mass / mass bar 500g	1803.10	1803.10.0000	1803.10.00	Cocoa paste, not defatted
(context) Chocolate bars (81%, not filled)	1806.32	1806.32.00	1806.32.00	Chocolate, cocoa preparations, blocks/slabs/bars, not filled

Product-by-product notes

1. Cacao beans — HS 1801.00

- Heading covers **whole or broken beans, raw or roasted**. Beans fermented, dried, cleaned and optionally roasted have undergone only primary treatment, so they stay in 1801.

- US HTS splits by **certified organic** (1801.00.0010) vs **other** (1801.00.0090). Our farm traceability means most shipments classify as organic — confirm certification is current at time of entry.
- Brazil export = **NCM 1801.00.00**; this is the code named in the DAO's MAPA facility registration (category "**Beneficiador de Amêndoa de Cacau**").
- Also documented as "cacao almonds" (whole beans) under NCM 1801.00.00.

2. Cacao nibs — HS 1801.00

- Nibs are **cracked/winnowed bean fragments** with no chemical transformation into paste, butter or powder — they therefore remain **broken cocoa beans under 1801.00**, not a Chapter 18 derivative.
- Packaging (8 oz Kraft pouch, 1 kg bags) does **not** change the classification.
- ■ **Flag:** The DAO's earlier China GACC guide listed nibs under **NCM 1803.10.00** (cocoa paste) alongside mass and husk. That grouping is imprecise. Under WCO logic pure nibs sit in **1801.00**. A broker ruling is recommended — if the nibs are roasted they can still be 1801, but any further processing (grinding to liquor) moves them to 1803.

3. Ceremonial cacao — HS 1803.10

- Ceremonial cacao is **fermented, sun-dried, lightly roasted beans stone-ground into a thick liquor/paste**, poured to blocks or wafers. The **cocoa butter stays in** (~50–55% of the bean).
- Because it is cocoa paste/liquor **not defatted**, it classifies as **HS 1803.10** (not defatted). US HTS 1803.10.0000; Brazil NCM 1803.10.00.
- **Do not use 1805** (cocoa powder) — 1805 applies where most of the cocoa butter has been pressed out. That is cacao *powder*, which is a different SKU from ceremonial cacao.
- **Do not use 1801** — the bean has been ground into liquor, which is a substantial transformation.

4. Cacao tea — HS 1802.00

- Pure cacao husk/shell tea is the dried outer shell of the bean, a by-product of winnowing → **HS 1802.00** ("cocoa shells, husks, skins and other cocoa waste").
- ■ **Flag:** The DAO's earlier China GACC guide listed cacao tea under **NCM 2106.90.00** (food preparations not elsewhere specified). That is the fallback code if, and only if, the product is a **blended or flavoured beverage preparation** (added botanicals, spices, sweetener). For a **single-ingredient pure cacao husk tea**, **1802.00** is the correct and more favourable heading. If blended, re-check against Chapter 09/2106.
- If the tea were ground cocoa powder based (not husk based), the correct code would be **1805** (unsweetened cocoa powder) or **1806.10** if sweetened.

Codes NOT to use, and why

Code	Covers	Why not us
1804.00	Cocoa butter, fat and oil	We do not sell extracted cocoa butter as a SKU
1805.00	Cocoa powder, no added sugar	Only if we sell press-cake powder — ceremonial cacao is not this
1806.10	Cocoa powder with added sugar	Sweetened product — not in portfolio
1806.20 / 1806.90	Other cocoa preparations	Bulk coating/chocolate preparations, not our retail SKUs

Why the code matters operationally

- **Duty & tariff:** Chapter 18 rates differ sharply by sub-heading — e.g. US 1803.10 not-defatted is duty-free while 1803.20 partly defatted carries 0.2¢/kg. Misclassification is a cost, not a formality.
- **China lane (GACC/CIFER):** GACC registers **one product, one registration**. The DAO guide notes two product categories: "**Confectionery, Chocolate**" (NCM 1806) vs "**cocoa beans/other products**" (NCM 1801/1803) — meaning beans, nibs, ceremonial cacao and tea generally file under the **beans/other** category, while chocolate bars file separately. The NCM declared must match the registration.
- **US lane:** Needs FDA FFR + FSVP + Prior Notice + per-shipment phytosanitary — MAPA is a **China-lane** requirement only.
- **Brazil MAPP/NCM:** The MAPA facility registration is keyed to **NCM 1801.00.00** (beneficiador de amêndoa de cacau).

Caveat

HS codes are the WCO's 6-digit international nomenclature; HTS (US) and NCM (Brazil) are national extensions and can change. These are the correct *headings* for each product based on the documented processing state — but classification is a legal determination. For any binding decision, obtain a **customs ruling / broker classification opinion** before the shipment is invoiced, particularly for **nibs** and **cacao tea**, where the DAO's prior internal docs differ from the WCO reading above.

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